

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

12. NICOLE CRADDOCK V. NATHAN CRADDOCK

24FL0996

Petitioner filed a Request for Order (RFO) on April 7, 2026, seeking child and spousal support orders. Petitioner concurrently filed an Income and Expense Declaration. Upon review of the court file, there is no Proof of Service showing Respondent was properly served.

The matter is dropped from calendar due to the lack of proper service.

TENTATIVE RULING #12: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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13. CARLA FORREST V. GARY FORREST

PFL20180899

Petitioner filed a Request for Order (RFO) on January 30, 2026, seeking modification of visitation orders made on January 15, 2026. The parties were not referred to Child Custody Recommending Counseling (CCRC) as they had attended within the prior six months. Proof of Service shows Respondent was served with only the RFO. The court notes this is a post-judgment request for modification and as such Family Code section 215 applies. Respondent was mail served without address verification.

Both parties appeared at the hearing on April 2, 2026. Petitioner requested the matter be continued to allow time to properly served Respondent. The court granted the request to continue and set the matter for a further review hearing on May 21, 2026, at 1:30 PM in Department 5.

Petitioner filed a Proof of Service on April 24, 2026, showing that Respondent was personally served with all the required documents on April 23, 2026. Petitioner requests the court allow the minor to determine whether she attends parenting time with Respondent.

Respondent filed a Responsive Declaration on May 11, 2026. The court finds this to be late filed. Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made May 8th the last day for filing a response to the RFO. Therefore, the declaration is late filed and has not been considered by the court. Further there is no Proof of Service for this document, and therefore the court cannot consider it on those grounds as well.

The court has read and considered the filings as outlined above. The court finds Petitioner’s request to be akin to a motion for reconsideration, as it was filed approximately 14 days after the court’s January 16, 2026 hearing. All the information before the court currently is the same information the court had when tendering its January 16, 2026 decision. Petitioner has failed to set forth any new or different facts or law that were not available to her at the January 16th hearing. Therefore, the court finds Petitioner has failed to set forth any grounds for reconsideration. As such, all prior orders remain in full force and effect.